



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: UDC-25-81 | Wit's End Recreation Facility
Date: May 12, 2025

Background:

The item for consideration is an *Outside User Agreement*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction 5/12/2025
- Public Services Committee 5/19/2025
- Consideration 5/27/2025

Attachments:

1. Resolution
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING SANITARY SEWER A SERVICES BY OUTSIDE USER AGREEMENT FOR SUTHERLAND'S FUN FAMILY FITNESS, LLC, FOR LAND AT 2611 AND 2607 WHITNEY ROAD (LOCATED EAST OF WHITNEY ROAD SOUTH OF PERSHING BOULEVARD)."

WHEREAS, Sutherland's Fun Family Fitness, LLC, is acquiring contiguous properties in Laramie County, Wyoming, located at 2611 and 2607 Whitney Road, more specifically described as:

A Tract in Section 36, Township 14 North, Range 66 West, described as: Beginning at a point on the south line of Lincoln Valley Tracts, which point bears N 33 degrees 02' E, 631.84' from the West ¼ Corner of said Section, 704.54' west of southeast Corner Tract 10 Lincoln Valley Tracts; Thence S 2 degrees 40' E, 648.06' to a point on the north R/W line of UPRR; thence S 55 degrees 19' W along said R/W, 471.16'; thence N 2 degrees 06' E, 385.9' to West ¼ Corner of said Section 36; thence N 2 degrees 40' W, 530.3' to southwest corner of said Lincoln Valley Tracts; thence east along south line of said Tract, 369.06' to Point of Beginning;

And

A Tract in Section 36, Township 14 North, Range 66 West, described as: Beginning at a point on south line of Lincoln Valley Tracts, which point bears N 33 degrees 02' E, 631.84' from West ¼ Corner of said Section, 704.54' west of southeast corner of Tract 10 Lincoln Valley Tracts; thence east along south line of said Tract, 704.54' to southeast corner of Tract 10; thence S 2 degrees 40' E, 177' to a point on north R/W line of UPRR; thence S 55 degrees 19' W along said R/W, 830.04'; thence N 2 degrees 40' W, 648.06' to Point of Beginning;

WHEREAS, Sutherland's Fun Family Fitness, LLC ("the Applicant"), submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the application for sanitary sewer services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the application submitted by the Applicant to BOPU for sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property more specifically described above, is hereby approved; and

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s), subject to the condition(s) imposed by the Governing Body.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk



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Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 12, 2025

STAFF REPORT

FILE: PUDC-25-81: Wit's End - Outside User Agreement

REQUEST: An outside user agreement for the provision of sewer to properties outside City limits.

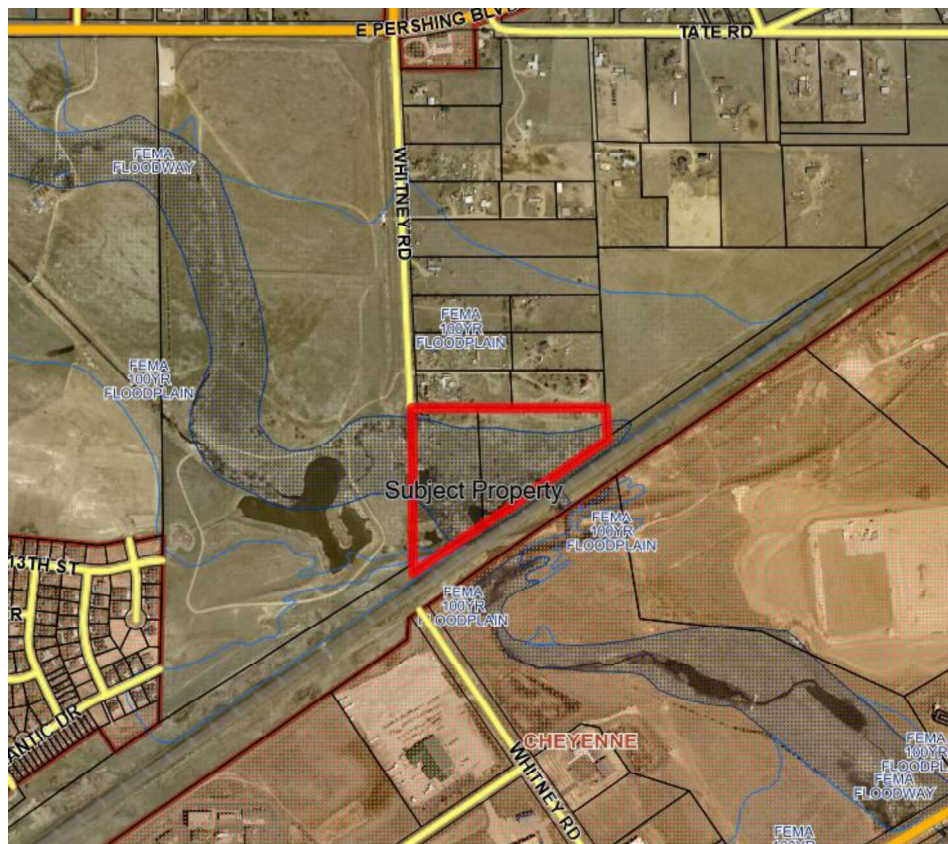
LOCATION: East of Whitney Road, south of Pershing Boulevard

APPLICANT: Sutherland's Fun Family Fitness, LLC

AGENT: David Sutherland

OWNERS: The Estate of Mary E. Winkler

PREPARED BY: Seth Lloyd, AICP, Senior Planner



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

The applicant is requesting connection to BOPU sanitary sewer services for property outside City limits. There is currently existing sewer in the area. City sanitary sewer is currently within the property along the southwest corner. City water is not proposed to be included in the Outside User Agreement. Water is over 1,000 feet away from the portion of the site proposed to be developed.

The standard Outside User Agreement contract includes language where the applicant consents to annexation at the City's request, with no specific date to complete the annexation.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Open Space	County AR Agricultural Residential	Largely Vacant
North	Open Space	County AR	Rural Residential
South	Open Space	City AG Agricultural	Open Space
East	Mixed-Use Residential, Industrial	County AR, City HI Heavy Industrial	Vacant, Industrial
West	Open Space	County P Public	Open Space

The property is currently zoned AR Agricultural Residential in the County.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Fiscal cost/benefit to the City and the BOPU
- Population served
- Considerations on the effect on future annexation(s), including proximity to current and future City services
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The proposed use of the properties is for outdoor recreation. Sanitary sewer is available along Dry Creek to the southwest of the property.

Property tax would increase, but the City would not have any income from the property tax in the area at this time. The proposed use is not residential and would not change distribution of funds based on population. The BOPU may charge a higher rate for outside users.

City limits exist to the north, west, south and east of this property – the property is only not in a County pocket due a corridor to the northeast. Non-infrastructure City services, such as fire, police, and sanitation could relatively easily be extended to the property. City sewer runs through the property. City water, on the other hand, would require a significant extension (partially due to the need to provide two connections for water). While this sort of extension of water lines would be feasible for large-scale development, the fractured ownership and existence of a floodplain make large-scale development and cost-effective water provision to the site difficult. Annexation was considered for the property (as City limits are adjacent to the property across the railroad tracks), but the extension of City water to this location would be difficult to do in a cost-effective manner. Future annexation of this property may result in a site that is in City limits but substandard compared to typical City requirements, including fire code requirements.

The Comprehensive Plan designates this area as Open Space – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

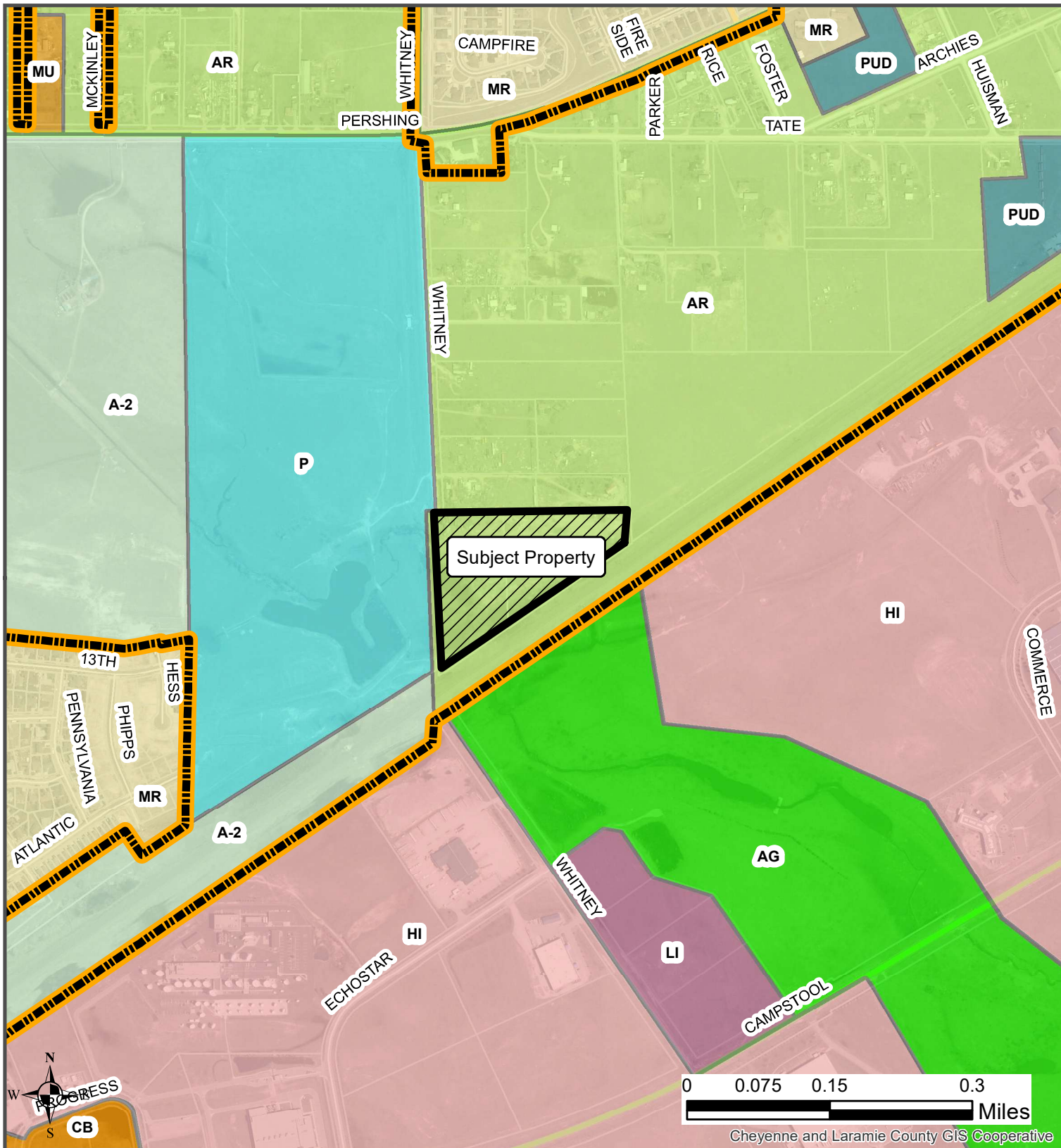
Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement.

STAFF RECOMMENDATION:

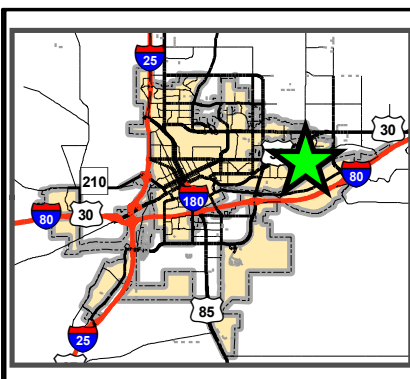
Staff recommends approval of the proposed outside user agreement.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Application
4. Applicant-submitted proposed site plan



Cheyenne and Laramie County GIS Cooperative

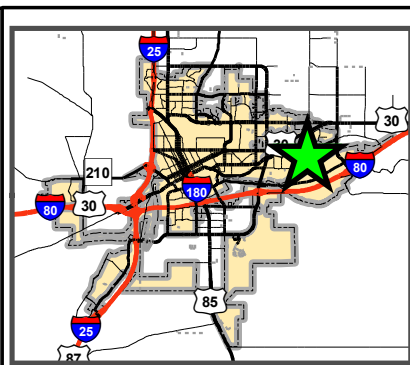
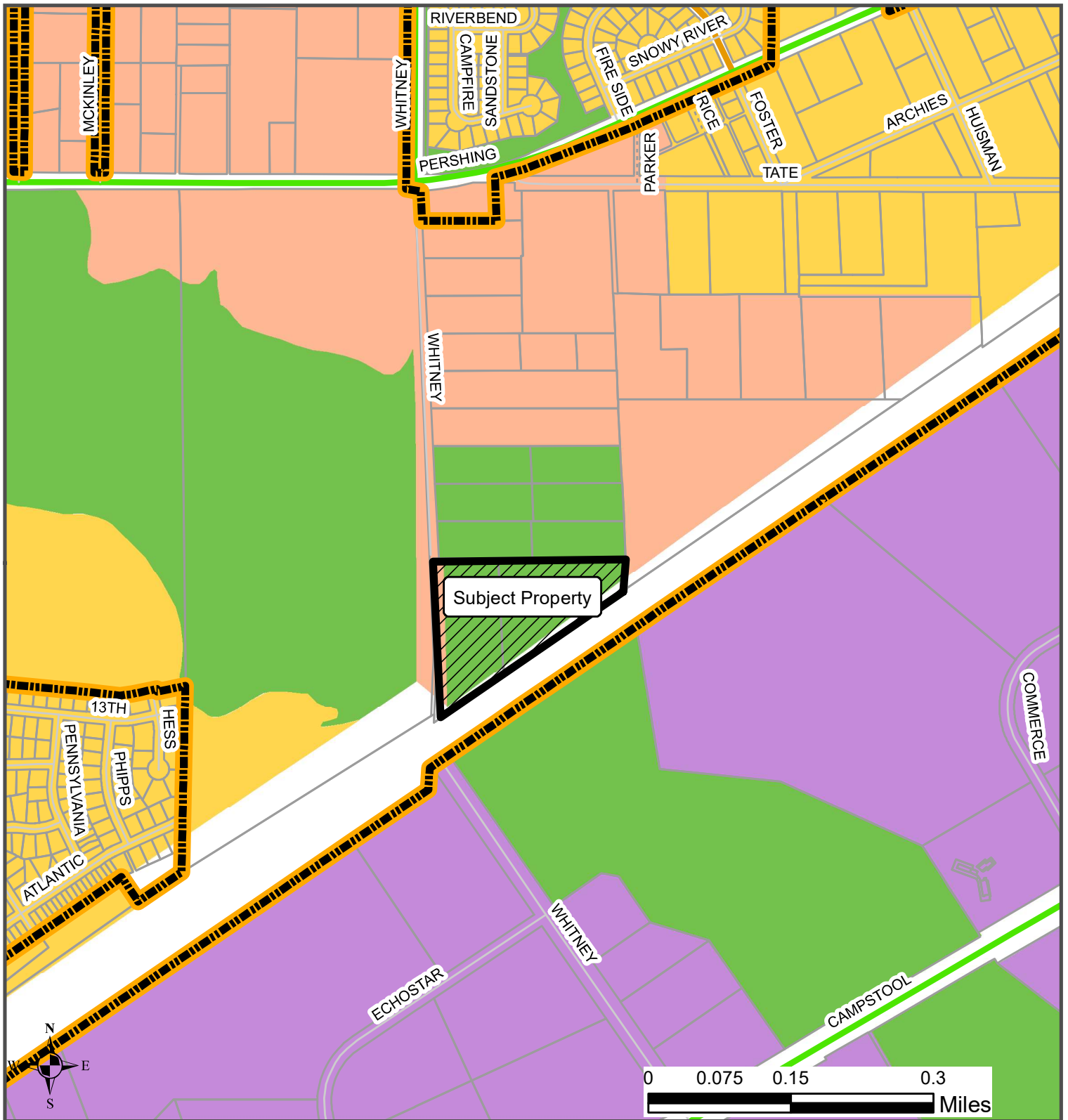


Attachment 1: Zoning Map PUDC-25-81

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-25-81

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Legend

CHEYENNE	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

PUDC-25-81

Outside User's Agreement
Status: Active
Submitted On: 4/3/2025

Primary Location

2611 WHITNEY RD
Cheyenne, WY 82001

Owner

The Estate of Mary E. Winkler Under Contract to
Sutherland's Fun Family Fitness, LLC.
6606 Campfire Ct. CHEYENNE, WY 82001

Applicant

 David Sutherland
 307-286-7048
 sf3cheyyenne@outlook.com
 6606 Campfire Ct
Cheyenne, WY 82001

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Written Statement*

We are seeking access to sewer only due to inability to permit a new septic in the floodplain.

I understand that I may not be eligible for an Outside User's Agreement if the property is close to current City limits.* 

☒

Number of connections to the BOPU system proposed* 

1

Dwelling units served* 

1

Anticipated jobs created* 

30

Review Criteria

BOPU has the capacity to serve.*
☒

The connection(s) proposed have a logical layout.*
☒

Effect of population served (employees or residents).*
☒

Serving the property will not be detrimental to the City's ability to annex in the area.*
☒

The anticipated financial impact to the City and BOPU. This is more than the direct costs or payments, and will include effects like property taxes, sales taxes, maintenance costs, etc.*
☒

The Comprehensive Plan's anticipated use patterns for the area.*
☒

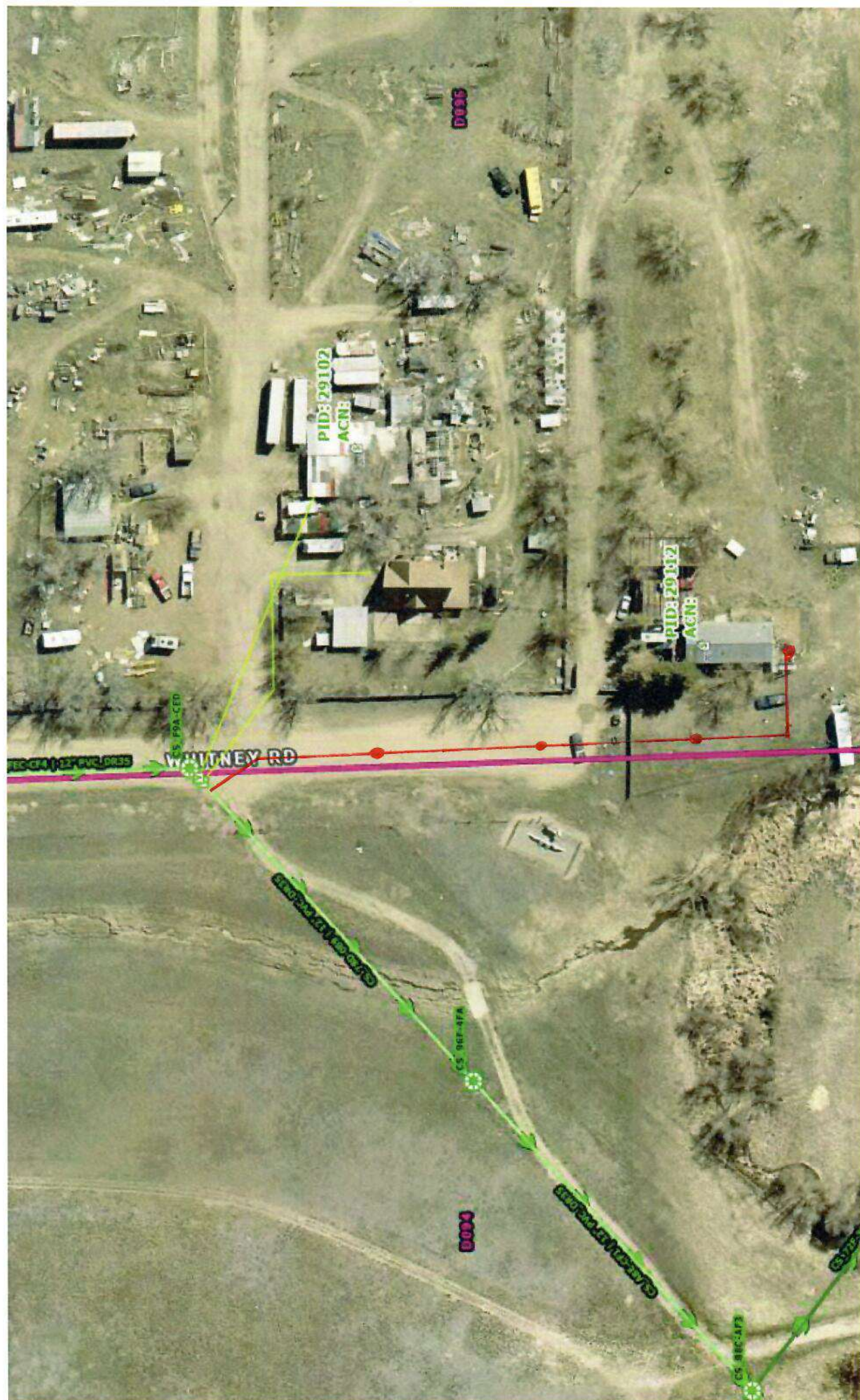
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

 David Sutherland
Apr 3, 2025

Attachments

	Wit's End City Sign.jpg Wit's End City Sign.jpg Uploaded by David Sutherland on Apr 14, 2025 at 10:05 AM	
	Letter of Authorization Contract to Purchase 2607 and 2611 Whitney Rd..pdf Uploaded by David Sutherland on Apr 3, 2025 at 2:06 PM	REQUIRED
	Plot Plan / Site Plan / Plat Map Site Layout Map - Wit's End Adventure Park.pdf Uploaded by David Sutherland on Apr 3, 2025 at 2:07 PM	REQUIRED
	Outside User's Questionnaire oua-questionnaire Wit's End Adventure Park.pdf Uploaded by David Sutherland on Apr 3, 2025 at 2:07 PM	REQUIRED
	BOPU Water and Flow Worksheet flow-worksheet Wit's End Adventure Park.pdf Uploaded by David Sutherland on Apr 3, 2025 at 2:07 PM	REQUIRED
	Proof of Ownership Agreement to Amend-Extend.pdf Uploaded by David Sutherland on Apr 3, 2025 at 2:08 PM	REQUIRED



≈ 400'